

THE STATUTES OF THE REPUBLIC OF SINGAPORE

PROTECTION FROM HARASSMENT ACT 2014

2020 REVISED EDITION

This revised edition incorporates all amendments up to and including 1 December 2021 and comes into operation on 31 December 2021.

Prepared and Published by

THE LAW REVISION COMMISSION
UNDER THE AUTHORITY OF
THE REVISED EDITION OF THE LAWS ACT 1983

Informal Consolidation – version in force from 17/8/2026

Protection from Harassment Act 2014

ARRANGEMENT OF SECTIONS

PART 1

PRELIMINARY

Section
1. Short title
2. Interpretation

PART 2

OFFENCES

3. Intentionally causing harassment, alarm, distress or humiliation
4. Harassment, alarm, distress or humiliation
5. Fear, provocation or facilitation of violence
6. Offences in relation to public servant or public service worker
7. Unlawful stalking
8. Enhanced penalty for subsequent offence
8A. Enhanced penalty for offence against vulnerable person
8B. Enhanced penalty for offence against victim in intimate relationship with offender
8C. Application of sections 8A and 8B
9. Community order
10. Contravention of certain orders

PART 3

CIVIL ACTIONS AND ORDERS

Division 1 — Actions and orders relating to contraventions of Part 2

11. Action for statutory tort
11A. Enhanced damages for statutory tort under section 11
12. Protection order
13. Expedited protection order

Section

13A. Referral for investigation by police when expedited protection order made
13B. Mandatory treatment order where protection order made
14. No civil action for common law tort of harassment

Division 2 — Orders relating to false statements

15. General provisions applicable to orders under sections 15A to 15E
15A. Stop publication order
15B. Correction order
15C. Disabling order
15CA. Stop publication (administrator) order
15CB. Correction (administrator) order
15D. Targeted correction order
15E. General correction order
16. General provisions applicable to interim orders
16A. Interim stop publication order
16AA. Interim disabling order
16AB. Interim stop publication (administrator) order
16B. Interim notification order
16BA. Targeted interim notification order
16BAA. Interim notification (administrator) order
16BB. Publication of notices

Division 3 — General

16C. Person who may appeal
16CA. Costs
16CB. Service of orders
16D. Compliance with orders

PART 3A

PROTECTION FROM HARASSMENT COURT

16E. Protection from Harassment Court
16F. Jurisdiction, powers and duties of Registrar
16G. Jurisdiction of Protection from Harassment Court
16H. Application of other written laws to Protection from Harassment Court
16I. Commencement of Part 3 proceedings
16J. Transfer of Part 3 proceedings

PART 4

GENERAL

Section

17. Application to person outside Singapore
18. Power of arrest
18A. Amendment of Schedule
19. Rules of Court
19A. Family Justice Rules
20. Regulations
20A. Presentation to Parliament
21. Exemptions
The Schedule — Specified offences

An Act to protect persons against harassment and unlawful stalking and false statements of fact, and to provide for the establishment of the Protection from Harassment Court.

[17/2019]

[15 November 2014]

PART 1

PRELIMINARY

Short title

1. This Act is the Protection from Harassment Act 2014.

Interpretation

2.—(1) In this Act, unless the context otherwise requires —

"administrator", in relation to an online location, means an individual or entity who —

(*a*) develops and maintains the online location;

(*b*) organises, manages or supervises the use of the online location;

(*c*) manages or regulates membership of, or access to, the online location; or

(*d*) has the authority to decide whether any communication or material may be included on or excluded from the online location, or where to place the communication or material on the online location, or otherwise exercise editorial control over the online location,

but does not include —

(*e*) an internet intermediary;

(*f*) the provider of a service which gives the public access to the internet;

(*g*) the provider of a computing resource service; and

(*h*) the provider of a telecommunication service;

[Act 23 of 2025 wef 29/06/2026]

"author", in relation to a statement of fact, means the originator of the statement;

"communication" means any words, image (moving or otherwise), message, expression, symbol or other representation that can be seen, heard or otherwise perceived by any person, or any combination of these;

"computing resource service" means a service that provides processing capability or storage capacity through the use of any computer hardware or software;

"correction (administrator) order" means an order made under section 15CB;

[Act 23 of 2025 wef 29/06/2026]

"correction order" means an order made under section 15B;

"court" means a court of competent jurisdiction;

[Act 31 of 2022 wef 01/11/2022]

"disabling order" means an order made under section 15C;

"electronic" means relating to technology having electrical, digital, magnetic, wireless, optical, electromagnetic or similar capabilities;

"entity" means any company or association or body of persons (whether corporate or unincorporate), but excludes any public agency;

"general correction order" means an order made under section 15E;

"identity information" means any information that, whether on its own or with other information, identifies or purports to identify an individual, including (but not limited to) any of the following:

(*a*) the individual's name, residential address, email address, telephone number, date of birth, national registration identity card number, passport number, signature (whether handwritten or electronic) or password;

(*b*) any photograph or video recording of the individual;

(*c*) any information about the individual's family, employment or education;

"interim disabling order" means an order made under section 16AA;

"interim notification (administrator) order" means an order made under section 16BAA;

[Act 23 of 2025 wef 29/06/2026]

"interim notification order" means an order made under section 16B;

"interim stop publication (administrator) order" means an order made under section 16AB;

[Act 23 of 2025 wef 29/06/2026]

"interim stop publication order" means an order made under section 16A;

"internet intermediary" means a person who provides any internet intermediary service;

"internet intermediary service" means —

(*a*) a service that allows end-users to access materials originating from third parties, using the internet;

(*b*) a service of transmitting materials to end-users on or through the internet; or

(*c*) a service of displaying, to an end-user who uses the service to make an online search, an index of search results, each of which links that end-user to content hosted or stored at a location which is separate from the location of the index of search results,

but excludes any act done for the purpose of or that is incidental to the provision of —

(*d*) a service of giving the public access to the internet; or

(*e*) a computing resource service;

Examples

Examples of internet intermediary services are —

(*a*) social networking services;

(*b*) search engine services;

(*c*) content aggregation services;

(*d*) internet-based messaging services; and

(*e*) video-sharing services.

"material" means anything that consists of or contains a statement;

Examples

Examples of a material are a message, a post, an article, a speech, a picture, a video recording and a sound recording.

"offending communication", in relation to any contravention of a provision under this Act, means any communication or statement made in contravention of that provision;

"online activity" means any activity conducted by means of the internet;

[Act 23 of 2025 wef 29/06/2026]

"online location" means any internet domain, website, webpage, chatroom, chat group, channel, group, forum, social media account page or any other location, that can be accessed by means of the internet;

[Act 23 of 2025 wef 29/06/2026]

"Part 3 proceedings" means civil proceedings for claims and orders under Part 3;

"Protection from Harassment Court" means a District Court designated under section 16E(1)(*a*) as a Protection from Harassment Court;

"Protection from Harassment Court Judge" means a District Judge designated under section 16E(1)(*b*) as a Protection from Harassment Court Judge;

"public agency" has the meaning given by section 128A(6) of the Evidence Act 1893;

"publish", in relation to a communication or statement, means to make the communication or statement available in any form such that the communication or statement is or can be heard, seen or otherwise perceived by the public in Singapore or a member of the public in Singapore, and includes cause to be published;

"Registrar" means the registrar of the State Courts, and includes a deputy registrar of the State Courts;

"related person", in relation to a person, means another person about whose safety or wellbeing the firstmentioned person would reasonably be expected to be seriously concerned;

"relevant party", in relation to an order, means an individual or entity against which the order is made;

"shared residence", in relation to the victim and the respondent who are the subjects of a protection order, means the premises at which the victim and the respondent are, or

have been, living together as members of the same household;

"statement" means any words (including abbreviations and initials), numbers, image (moving or otherwise), sounds, symbols or other representation, or a combination of any of these;

"stop publication (administrator) order" means an order made under section 15CA;

[Act 23 of 2025 wef 29/06/2026]

"stop publication order" means an order made under section 15A;

"stop publishing", in relation to a communication, means taking the reasonable steps to ensure that the communication is not made available in any form such that the communication is or can be seen, heard or otherwise perceived by the public in Singapore or any member of the public in Singapore;

"targeted correction order" means an order made under section 15D;

"targeted interim notification order" means an order made under section 16BA.

[17/2019]

(2) In this Act —

(*a*) a statement of fact is a statement which a reasonable person seeing, hearing or otherwise perceiving it would consider to be a representation of fact; and

(*b*) a statement is false if it is false or misleading whether wholly or in part, and whether on its own or in the context in which it appears.

[17/2019]

PART 2

OFFENCES

Intentionally causing harassment, alarm, distress or humiliation

3.—(1) An individual or entity must not, with intent to cause harassment, alarm, distress or humiliation to another person (called in this section the target person), by any means —

(*a*) use any threatening, abusive, insulting, sexual or indecent words or behaviour;

(*b*) make any threatening, abusive, insulting, sexual or indecent communication; or

(*c*) publish any identity information of the target person or a related person of the target person,

and as a result causing the target person or any other person (each called in this section the victim) harassment, alarm, distress or humiliation.

[Act 23 of 2025 wef 29/06/2026]

(2) Any individual or entity that contravenes subsection (1) shall be guilty of an offence and, subject to section 8, shall be liable on conviction to a fine not exceeding $5,000 or to imprisonment for a term not exceeding 6 months or to both.

[17/2019]

(3) In any proceedings for an offence under subsection (2), it is a defence for the accused individual or accused entity (called in this section the accused) to prove that the accused's conduct was reasonable.

Illustrations

(*a*) X and Y are coworkers. At the workplace, X loudly and graphically describes to the other coworkers X's desire for a sexual relationship with Y in an insulting manner. X knows that Y is within earshot and intends to cause Y distress. Y is distressed. X is guilty of an offence under this section.

(*b*) X writes a letter containing threatening words towards Y intending to send the letter to Y to cause him or her alarm. X decides not to send the letter and throws it away. Y finds the letter and is alarmed. X is not guilty of an offence

under this section as he or she had no reason to believe that the letter would be seen by Y.

(*c*) X and Y were formerly in a relationship which has since ended. X writes a post on a social media platform making abusive and insulting remarks about Y's alleged sexual promiscuity. In a subsequent post, X includes Y's photographs and personal mobile number, intending to cause Y harassment by facilitating the identification or contacting of Y by others. Y did not see the posts, but receives and is harassed by telephone calls and SMS messages from strangers (who have read the posts) propositioning Y for sex. X is guilty of an offence under section 3(2) in relation to each post.

(*d*) X records a video of Y driving recklessly in a car on the road. X posts the video on an online forum, where people share snippets of dangerous acts of driving on the road. X posts the video with the intent to warn people to drive defensively. X has not committed an offence under this section.

(*e*) *X* is a photo-journalist who documents indigenous tribes. *X* takes a photograph of a group of naked tribes people preparing a meal and posts it on a news website as part of a feature on the tribe. *X*'s post is not sexual or indecent.

[17/2019]

[Act 23 of 2025 wef 29/06/2026]

Harassment, alarm, distress or humiliation

4.—(1) An individual or entity must not by any means —

(*a*) use any threatening, abusive, insulting, sexual or indecent words or behaviour;

(*b*) make any threatening, abusive, insulting, sexual or indecent communication,

which is heard, seen or otherwise perceived by any person (called in this section the victim) likely to be caused harassment, alarm, distress or humiliation.

[Act 23 of 2025 wef 29/06/2026]

(1A) An individual or entity does not contravene subsection (1) where the sexual or indecent words or behaviour, or the sexual or indecent communication (as the case may be), has a legitimate purpose related to science, medicine, education or art.

Explanation.— Sexual or indecent words or behaviour, or sexual or indecent communication, has a legitimate purpose related to art which a reasonable person would regard as art.

[Act 23 of 2025 wef 29/06/2026]

(2) Any individual or entity that contravenes subsection (1) shall be guilty of an offence and, subject to section 8, shall be liable on conviction to a fine not exceeding $5,000.

[17/2019]

(3) In any proceedings for an offence under subsection (2), it is a defence for the accused individual or accused entity (called in this section the accused) to prove —

(*a*) that the accused had no reason to believe that the words or behaviour used, or the communication made, by the accused would be heard, seen or otherwise perceived by the victim; or

(*b*) that the accused's conduct was reasonable.

Illustrations

(*a*) X and Y are classmates. X posts a vulgar tirade against Y on a website accessible to all of their classmates. One of Y's classmates shows the message on the website to Y, and Y is distressed. X is guilty of an offence under this section.

(*b*) X and Y are classmates. X gathers with other classmates outside Y's family home, where Y lives with Y's parents, and shouts threats at Y. Y is not at home. Y's mother hears X's threats and is distressed, because she fears for Y's safety. X is guilty of an offence under this section.

(*c*) X enters a bus station and starts to brandish a sword. Several persons present are alarmed by X's behaviour. X is guilty of an offence under this section even though X's actions were not directed at anyone.

(*d*) *X*, the supervisor of a counselling service provider, circulates training material with case studies of sexually harassing online posts in an internal messaging group for counsellors. *X*'s communication has a legitimate purpose related to education.

(*e*) *X* posts sex-education graphics in a messaging group with *X*'s colleagues. The material is unrelated to the group's work, and *X* continues despite requests

from *X*'s colleagues to stop because they find it harassing. *X*'s posts do not have a legitimate purpose related to science, medicine, education or art.

[17/2019]

[Act 23 of 2025 wef 29/06/2026]

Fear, provocation or facilitation of violence

5.—(1) An individual or entity must not by any means use towards another person (called in this section, except subsection (1A), the victim) any threatening, abusive or insulting words or behaviour, or make any threatening, abusive or insulting communication to another person (also called in this section, except subsection (1A), the victim), either —

(*a*) with the intent —

(i) to cause the victim to believe that unlawful violence will be used by any person against the victim or any other person; or

(ii) to provoke the use of unlawful violence by the victim or another person against any other person; or

(*b*) whereby —

(i) the victim is likely to believe that such violence mentioned in paragraph (*a*)(i) will be used; or

(ii) it is likely that such violence mentioned in paragraph (*a*)(ii) will be provoked.

[17/2019]

(1A) An individual or entity must not by any means publish any identity information of another person (called in this subsection the victim) or a related person of the victim, either —

(*a*) with the intent —

(i) to cause the victim to believe that unlawful violence will be used against the victim or any other person; or

(ii) to facilitate the use of unlawful violence against the victim or any other person; or

(*b*) knowing or having reasonable cause to believe that it is likely —

(i) to cause the victim to believe that unlawful violence will be used against the victim or any other person; or

(ii) to facilitate the use of unlawful violence against the victim or any other person.

[17/2019]

(2) Any individual or entity that contravenes subsection (1) or (1A) shall be guilty of an offence and, subject to section 8, shall be liable on conviction to a fine not exceeding $5,000 or to imprisonment for a term not exceeding 12 months or to both.

[17/2019]

(3) In any proceedings for an offence under subsection (2), it is a defence for the accused individual or accused entity (called in this section the accused) to prove —

(*a*) in respect of a contravention of subsection (1)(*b*), that the accused had no reason to believe that the words or behaviour used, or the communication made, by the accused would be heard, seen or otherwise perceived by the victim; or

(*b*) that the accused's conduct was reasonable.

Illustrations

(*a*) X and Y are classmates. X writes a post with threatening and abusive remarks against Y on a website accessible to all their classmates. X writes a subsequent post on the same website, stating Y's identity information and stating "Everyone, let's beat Y up!". X is guilty of an offence under this section in respect of the subsequent post.

(*b*) X writes a public post on a social media platform containing threats against Y. X publishes a subsequent public post stating A's home address and a message "I know where you live". X is guilty of an offence under this section relating to conduct mentioned in section 5(1A)(*a*)(i) if X intends the subsequent post to cause Y to believe that violence will be used against A, or an offence under this section relating to conduct mentioned in section 5(1A)(*b*)(i) if X knows that it is likely that Y will believe that violence will be used against A as a result of X's subsequent post.

(*c*) X writes a post (on a social media platform to which Y does not have access) containing threats of violence against Y and calling others to "hunt him

down and teach him a lesson". B posts Y's home address in reply to X's post. B is guilty of an offence under this section.

[17/2019]

Offences in relation to public servant or public service worker

6.—(1) An individual or entity that by any means —

(*a*) uses any threatening, abusive, insulting, sexual or indecent words or behaviour; or

[Act 23 of 2025 wef 29/06/2026]

(*b*) makes any threatening, abusive, insulting, sexual or indecent communication,

towards or to a public servant or public service worker (called in this section, except subsection (1A), the victim) in relation to the execution of the duty of the public servant or public service worker, shall be guilty of an offence.

[17/2019]

[Act 23 of 2025 wef 29/06/2026]

(1A) An individual or entity that, by any means, publishes any identity information of a public servant or public service worker or a related person of a public servant or public service worker —

(*a*) with intent to cause harassment, alarm, distress or humiliation to the public servant or public service worker; and

[Act 21 of 2025 wef 17/08/2026]

(*b*) either —

(i) with intent to prevent or deter the public servant or public service worker from discharging the duty of that public servant or public service worker; or

(ii) in consequence of anything done or attempted to be done by the public servant or public service worker in the lawful discharge of the duty of that public servant or public service worker,

shall be guilty of an offence.

[Act 21 of 2025 wef 17/08/2026]

(2) No offence is committed under this section unless the accused individual or accused entity (called in this section the accused) knows or ought reasonably to know that the victim was acting in the victim's capacity as a public servant or public service worker, as the case may be.

[17/2019]

(3) Subject to section 8, an individual or entity shall be liable, on conviction for an offence under subsection (1) or (1A), to a fine not exceeding $5,000 or to imprisonment for a term not exceeding 12 months or to both.

[17/2019]

(4) It is a defence for the accused to prove —

(*a*) in any proceedings for an offence under subsection (1), that the accused had no reason to believe that the words or behaviour used, or the communication made, by the accused would be heard, seen or otherwise perceived by the victim; or

(*b*) in any proceedings for an offence under subsection (1) or (1A), that the accused's conduct was reasonable.

[17/2019]

(5) In this section —

"public servant" has the meaning given by the Penal Code 1871, and includes any person who, by virtue of any other written law, is deemed to be a public servant for the purposes of the Penal Code 1871;

"public service worker" means an individual who belongs to a prescribed class of employees or workers that provides any service which is essential to the wellbeing of the public or the proper functioning of Singapore, as prescribed under subsection (6).

(6) For the purposes of the definition of "public service worker" in subsection (5), the Minister may, by order in the *Gazette*, prescribe the classes of employees or workers and the services provided by them.

(7) Every order made under subsection (6) must be presented to Parliament as soon as possible after publication in the *Gazette*.

Illustration

X is unhappy that a public servant, Y, refused to waive a late payment charge. X writes several posts on an open social media platform with abusive comments about Y in relation to the incident. In a subsequent post, X posts Y's name, home address and photograph on the same open social media platform in order to cause Y distress. Y is distressed by the subsequent post. X is guilty of an offence under this section.

[17/2019]

Unlawful stalking

7.—(1) An individual or entity must not unlawfully stalk another person.

[17/2019]

(2) Subject to subsection (7), an individual or entity (called in this section the accused) unlawfully stalks another person (called in this section the victim) if the accused engages in a course of conduct which —

(*a*) involves acts or omissions associated with stalking;

(*b*) causes harassment, alarm, distress or humiliation to the victim; and

[Act 23 of 2025 wef 29/06/2026]

(*c*) the accused —

(i) intends to cause harassment, alarm, distress or humiliation to the victim; or

[Act 23 of 2025 wef 29/06/2026]

(ii) knows or ought reasonably to know is likely to cause harassment, alarm, distress or humiliation to the victim.

[17/2019]

[Act 23 of 2025 wef 29/06/2026]

(3) The following are examples of acts or omissions which, in particular circumstances, are ones associated with stalking:

(*a*) following the victim or a related person;

(*b*) making any communication, or attempting to make any communication, by any means —

(i) to the victim or a related person;

(ii) relating or purporting to relate to the victim or a related person; or

(iii) purporting to originate from the victim or a related person;

(*c*) entering or loitering in any place (whether public or private) outside or near the victim's or a related person's place of residence or place of business or any other place frequented by the victim or the related person;

(*ca*) engaging in online activity in any online location (whether public or private) which is visited by the victim or a related person;

[Act 23 of 2025 wef 29/06/2026]

(*cb*) making a presence felt to the victim or a related person in any online location (whether public or private);

[Act 23 of 2025 wef 29/06/2026]

(*d*) interfering with property in the possession of the victim or a related person (whether or not the accused has an interest in the property);

(*e*) giving or sending material to the victim or a related person, or leaving it where it will be found by, given to or brought to the attention of, the victim or a related person;

(*f*) keeping the victim or a related person under surveillance.

Illustrations

These acts are acts associated with stalking of X by Y:

(*a*) Y repeatedly sends emails to Y's subordinate (X) with suggestive comments about X's body.

(*b*) Y sends flowers to X daily even though X has asked Y to stop doing so.

(*c*) Y repeatedly circulates revealing photographs of a classmate (X) to other classmates.

(*d*) *Y* repeatedly posts emojis or symbols on *X*'s social media account page even though *X* has asked *Y* on multiple occasions to stop interacting with *X*.

(*e*) *Y* sends messages to the social media accounts of many family members and friends of *X*, with disparaging comments about *X*.

(*f*) *X* has blocked *Y* on a social media service and told *Y* to stop associating with *X*. Despite this, *Y* joins every online community that *X* is part of across multiple social media services, and persistently makes *Y*'s presence felt to *X* by engaging in online activity in these communities, even though *X* cannot communicate with *Y* directly.

This act is not an act associated with stalking of *X* by *Y*:

(*g*) *Y* uses *Y*'s social media account to follow *X*'s public social media page and regularly checks for updates, where *X* has not taken steps to stop *Y* from doing so.

[17/2019]

[Act 23 of 2025 wef 29/06/2026]

(4) For the purposes of subsection (2)(*c*), the accused ought reasonably to know that the accused's course of conduct is likely to cause harassment, alarm, distress or humiliation to the victim if a reasonable person in possession of the same information would think that the course of conduct is likely to have that effect.

[17/2019]

[Act 23 of 2025 wef 29/06/2026]

(5) In considering whether a course of conduct is likely to cause harassment, alarm, distress or humiliation, the court may have regard to the following factors:

(*a*) the number of occasions on which the acts or omissions associated with stalking were carried out;

(*b*) the frequency and the duration of the acts or omissions associated with stalking that were carried out;

(*c*) the manner in which the acts or omissions associated with stalking were carried out;

(*d*) the circumstances in which the acts or omissions associated with stalking were carried out;

(*e*) the particular combination of acts or omissions associated with stalking comprised in the course of conduct;

(*f*) the likely effects of the course of conduct on the victim's safety, health, reputation, economic position, or the

victim's freedom to do any act which he or she is legally entitled to do or not to do any act which he or she is not legally bound to do; and

(*g*) the circumstances of the victim including his or her physical or mental health and personality.

[Act 23 of 2025 wef 29/06/2026]

(6) Any individual or entity that contravenes subsection (1) shall be guilty of an offence and, subject to section 8, shall be liable on conviction to a fine not exceeding $5,000 or to imprisonment for a term not exceeding 12 months or to both.

[17/2019]

(7) In any proceedings for an offence under subsection (6), it is a defence for the accused to prove —

(*a*) that the course of conduct was reasonable in all the circumstances;

(*b*) that the course of conduct was pursued under any written law or rule of law or to comply with any condition or requirement imposed by any person under any written law;

(*c*) that the course of conduct was lawfully done under a duty or power under any written law for the purpose of preventing or detecting crime; or

(*d*) that the course of conduct was done on behalf of the Government and was necessary for the purposes of national security, national defence or the conduct of international relations.

[17/2019]

(8) If any dispute arises as to whether any act falls within paragraph (*d*) of subsection (7), a certificate issued under the hand of the Minister responsible for national security, or for national defence or for the conduct of international relations (as the case may be), stating that in the Minister's opinion any act done by a specified individual or specified entity on a specified occasion falls within that paragraph is conclusive evidence that the act falls within that paragraph.

[17/2019]

(9) A document purporting to be a certificate issued pursuant to subsection (8) and to be issued under the hand of the Minister shall be received in evidence and, unless the contrary is proved, be treated as being such a certificate.

(10) In this section, "course of conduct" means conduct —

(*a*) on one occasion, if —

(i) the conduct is protracted; or

(ii) the accused has a previous conviction under this section in respect of the same victim; or

(*b*) on 2 or more occasions in any other case.

Illustration

Y surreptitiously plants a camera in X's apartment. Unknown to X, the camera continuously transmits live videos of X in X's apartment and Y watches the videos continually over several days. Y's conduct is protracted.

[17/2019]

Enhanced penalty for subsequent offence

8.—(1) An individual or entity that is convicted (whether before, on or after 15 November 2014) of any offence under the repealed section 13A, 13B, 13C or 13D of the Miscellaneous Offences (Public Order and Nuisance) Act 1906 in force before that date or who is convicted of any offence under section 17C(2) of the Private Security Industry Act 2007* or under section 3, 4, 5, 6 or 7 shall, on a subsequent conviction —

(*a*) for an offence under section 3, be liable to a fine not exceeding $10,000 or to imprisonment for a term not exceeding 12 months or to both;

(*b*) for an offence under section 4, be liable to a fine not exceeding $10,000 or to imprisonment for a term not exceeding 6 months or to both;

(*c*) for an offence under section 5, be liable to a fine not exceeding $10,000 or to imprisonment for a term not exceeding 2 years or to both;

(*d*) for an offence under section 6, be liable to a fine not exceeding $10,000 or to imprisonment for a term not exceeding 2 years or to both; and

(*e*) for an offence under section 7, be liable to a fine not exceeding $10,000 or to imprisonment for a term not exceeding 2 years or to both.

[17/2019]

[Act 29 of 2021 wef 01/05/2022]

*[*Updated to be consistent with the 2020 Revised Edition]*

(2) An individual or entity that is convicted (whether before, on or after 1 January 2020) of an offence under section 10 shall, on a subsequent conviction for an offence under section 10 that is committed on or after that date, be liable to a fine not exceeding $10,000 or to imprisonment for a term not exceeding 12 months or to both.

[17/2019]

Enhanced penalty for offence against vulnerable person

8A.—(1) This section applies where an individual or entity (called in this section the offender) is convicted of any of the following offences relating to a victim who is a vulnerable person and the enhanced penalty under section 8 does not apply to that conviction:

(*a*) an offence under section 3, 4, 5 or 7 that is committed on or after 1 January 2020 against such a victim;

(*b*) an offence under section 10 that is committed on or after 1 January 2020 for failure to comply with an order given in respect of such a victim of a contravention of section 3, 4, 5 or 7.

[17/2019]

(2) The court may sentence the offender to punishment not exceeding twice the maximum punishment that the court could, but for this section, impose for the offence, if at the time of committing the offence the offender knew or ought reasonably to have known that the victim was a vulnerable person.

[27/2018; 17/2019]

(2A) This section does not apply where the offender proves that despite being a vulnerable person, the victim was capable of

protecting himself or herself from the offender in respect of the harm caused by the offence in the same manner as an ordinary person who is not a vulnerable person.

[17/2019]

(3) In this section —

"abuse" has the meaning given by section 2(1) of the Vulnerable Adults Act 2018;

"harm" means —

(*a*) any physical harm;

(*b*) harassment, alarm, distress or humiliation; or

[Act 23 of 2025 wef 29/06/2026]

(*c*) being caused to believe that unlawful violence will be used against the victim;

"neglect" has the meaning given by section 2(1) of the Vulnerable Adults Act 2018;

"self-neglect" has the meaning given by section 2(1) of the Vulnerable Adults Act 2018;

"vulnerable person" means an individual who is, by reason of mental or physical infirmity, disability or incapacity, substantially unable to protect himself or herself from abuse, neglect or self-neglect.

[17/2019]

Enhanced penalty for offence against victim in intimate relationship with offender

8B.—(1) This section applies where an offender (*A*) is convicted of —

(*a*) an offence under section 3, 4, 5 or 7 that is committed on or after 1 January 2020 against a victim who was or is in an intimate relationship with *A*; or

(*b*) an offence under section 10 that is committed on or after 1 January 2020 for failure to comply with an order given in respect of a victim of a contravention of section 3, 4, 5 or 7 who was or is in an intimate relationship with *A*,

and the enhanced penalty under section 8 does not apply to that conviction.

[17/2019]

(2) The court may sentence *A* to punishment not exceeding twice the maximum punishment that the court could impose for the offence under section 3, 4, 5, 7 or 10 (as the case may be), if at the time of committing the offence *A* knew or ought reasonably to have known that the victim (*B*) was or is in an intimate relationship with *A*.

[17/2019]

(3) In this section, the court may determine whether *B* was or is in an intimate relationship with *A* having regard to all the circumstances of the case, including the following:

(*a*) whether *A* and *B* are living in the same household, although it is not necessary that they live in the same household;

(*b*) whether *A* and *B* share the tasks and duties of their daily lives;

(*c*) whether *A* and *B* have made arrangements to share expenses or financial support and the degree of financial dependence or interdependence between *A* and *B*;

(*d*) whether there is a sexual relationship between *A* and *B*, although it is not necessary that there be a sexual relationship between them;

(*e*) whether *A* and *B* share the care and support of a specific person below 21 years of age;

(*f*) whether *A* and *B* conduct themselves toward their friends, relatives or other persons as parties to an intimate relationship, and whether *A* and *B* are so treated by their friends, relatives or other persons.

[17/2019]

(4) Subsection (2) does not apply where *A* proves that, despite *A* having been or being in an intimate relationship with *B*, the relationship between *A* and *B* did not adversely affect *B*'s ability to protect *B* from *A* in respect of the harm caused by the offence.

[17/2019]

(5) In subsection (4), "harm" means —

(*a*) any physical harm;

(*b*) harassment, alarm, distress or humiliation; or

[Act 23 of 2025 wef 29/06/2026]

(*c*) being caused to believe that unlawful violence will be used against the victim.

[17/2019]

Application of sections 8A and 8B

8C. Where sections 8A and 8B are both applicable to enhance the punishment for an offence —

(*a*) the punishment for that offence shall not be enhanced by the application of more than one section; and

(*b*) the court may determine which section should apply to enhance the punishment.

[17/2019]

Community order

9. A court has, upon the conviction of any person for any offence under section 3, 4, 5, 6, 7 or 10, the power to make a community order under Part 17 of the Criminal Procedure Code 2010 despite any provision to the contrary in section 337(1)(*h*) of that Code.

[17/2019]

Contravention of certain orders

10.—(1) An individual or entity that, without reasonable excuse, fails to comply with an order made under —

(*a*) section 12(2) or (2E); or

(*b*) section 13(1) or (1B),

(except any provision mentioned in section 12(2B)(*c*), or any requirement mentioned in section 12(3) relating to that provision) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $5,000 or to imprisonment for a term not exceeding 6 months or to both.

[17/2019]

(1A) In proceedings for an offence under subsection (1), an accused is presumed, until the contrary is proved, to have knowledge of the terms of an order made under this Act at and after the time when the order takes effect.

[17/2019]

(2) Subject to subsection (3), subsection (1) does not affect the powers of the court in relation to the punishment for contempt of court.

(3) Where a person is convicted of an offence under subsection (1) in respect of any non-compliance with an order, that non-compliance is not punishable as a contempt of court.

(4) A person cannot be convicted of an offence under subsection (1) in respect of any non-compliance with an order which has been punished as a contempt of court.

PART 3

CIVIL ACTIONS AND ORDERS

Division 1 — Actions and orders relating to contraventions of Part 2

[17/2019]

Action for statutory tort

11.—(1) The victim under section 3, 4, 5 or 7 may bring civil proceedings in a court against any individual or entity alleged to have contravened that section in relation to the victim (called in this section the respondent).

[17/2019]

(2) In such proceedings, if the court is satisfied on the balance of probabilities that the respondent has contravened that section as alleged by the victim, the court may award such damages in respect of the contravention as the court may, having regard to all the circumstances of the case, think just and equitable.

Enhanced damages for statutory tort under section 11

11A.—(1) In any civil proceedings for a statutory tort under section 11 against any individual or entity alleged to have contravened section 3, 4, 5 or 7 in respect of the victim (called in this section the respondent), where the conduct that is the subject of the claim comprises wholly or partly of any online activity, the court may, if it thinks just and equitable in the circumstances to do so, award enhanced damages attributable to the online activity to the victim where —

(*a*) the victim made a reasonable written request to the respondent the effect of which is to ask the respondent to address the online activity that is the subject of the claim; and

(*b*) the respondent failed, without reasonable excuse, to address the online activity within a reasonable time.

(2) The award of enhanced damages that a court may award under subsection (1) —

(*a*) is in addition to any general and special damages that may be awarded;

(*b*) is distinct from punitive damages or aggravated damages, and the principles governing the award of those damages need not apply to an award of enhanced damages; and

(*c*) may in the court's discretion be awarded in addition to or in lieu of any punitive or aggravated damages.

(3) The Minister may make regulations —

(*a*) to prescribe the maximum limits of enhanced damages that a court may award under subsection (1); and

(*b*) to clarify the application of the Limitation Act 1959 to an action for a claim for enhanced damages under this Act including prescribing a period of limitation for that action.

[Act 23 of 2025 wef 29/06/2026]

Protection order

12.—(1) Subject to subsection (9), the victim of an alleged contravention of section 3, 4, 5, 6 or 7 may make an application to a court for a protection order.

[17/2019]

(2) A court may, if it is just and equitable in the circumstances to do so, make a protection order against any individual or entity alleged to have contravened section 3, 4, 5, 6 or 7 in respect of the victim (called in this section the respondent) if it is satisfied on the balance of probabilities that —

(*a*) the respondent has contravened section 3, 4, 5, 6 or 7 in respect of the victim; and

(*b*) the respondent is likely to continue that contravention or to commit another contravention of section 3, 4, 5, 6 or 7 in respect of the victim.

[17/2019]

(2A) For the purposes of subsection (2)(*a*), a court is deemed to be satisfied on the balance of probabilities that the respondent has contravened section 3, 4, 5, 6 or 7 in respect of the victim if —

(*a*) the respondent has been convicted of that offence, or any offence specified in the Schedule, in respect of the victim; or

(*b*) the court is satisfied on the balance of probabilities that the respondent has voluntarily caused hurt (within the meaning given by section 321 of the Penal Code 1871) to the victim.

[17/2019]

(2B) A protection order under subsection (2) may provide for all or any of the following:

(*a*) prohibit the respondent from doing any thing in relation to the victim or any related person of the victim, as may be specified in the order;

(*b*) if the likely contravention or likely continuing contravention of section 3, 4, 5, 6 or 7 mentioned in subsection (2)(*b*) involves an offending communication,

require the respondent to stop publishing (before a specified time) the offending communication or to not publish any communication that is similar to the offending communication;

[Act 23 of 2025 wef 29/06/2026]

(*c*) refer the respondent, the victim or a related person of the victim (or 2 or more of them) to attend counselling or mediation provided by such body as the court may direct.

[17/2019]

(2C) To avoid doubt, a protection order may, under subsection (2B)(*a*), grant the right of exclusive occupation to the victim of the shared residence or a specified part of the shared residence by excluding the respondent from that shared residence or a specified part of the shared residence, whether or not the shared residence is solely owned or leased by the respondent or jointly owned or leased by the respondent and the victim.

[17/2019]

(2D) Except so far as the exercise by the respondent of a right to the shared residence is suspended or restricted, or prohibited or restrained, by virtue of an order made under subsection (2C), the order does not affect any title or interest that the respondent or any other person might have in the residence.

[17/2019]

(2E) In addition, where a court is satisfied on the balance of probabilities that —

(*a*) the respondent's contravention involves an offending communication; and

(*b*) any other individual or entity (called in this section a third party) is likely to publish, or continue to publish, the offending communication or any communication that is similar to the offending communication,

the court may, if it is just and equitable in the circumstances to do so, make a protection order requiring any third party to stop publishing, by a specified time, or to not publish the offending communication or any communication that is similar to the offending communication.

[17/2019]

[Act 23 of 2025 wef 29/06/2026]

(2F) Where a court is satisfied on the balance of probabilities that —

(*a*) the respondent's contravention involves an offending communication; and

(*b*) the respondent or a third party has published, or is likely to publish or continue to publish, the offending communication by means of an internet intermediary service provided by an internet intermediary,

the court may also, if it is just and equitable in the circumstances to do so, make a protection order requiring the internet intermediary to disable access by end-users of the service in Singapore, within a specified time, to —

(*c*) the offending communication; or

(*d*) in the case of a prescribed internet intermediary —

(i) the offending communication; or

(ii) any identical copy of the offending communication.

[17/2019]

(2G) Where a court is satisfied on the balance of probabilities that —

(*a*) the respondent's contravention involves an offending communication; and

(*b*) the respondent or a third party has published, or is likely to publish or continue to publish, the offending communication on an online location,

the court may also, if it is just and equitable in the circumstances to do so, make a protection order requiring the administrator concerned to stop the offending communication or any identical copy of the offending communication from being published in Singapore at the online location within a specified time.

[Act 23 of 2025 wef 29/06/2026]

(3) A protection order under subsection (2), (2E), (2F) or (2G) may also include any requirement necessary for or incidental to the proper carrying into effect of the order.

[17/2019]

[Act 23 of 2025 wef 29/06/2026]

(4) A protection order may be made subject to such exceptions or conditions as may be specified in the order.

(5) An order under this section takes effect in respect of a relevant party —

(*a*) when the order is served on the relevant party in such manner as may be prescribed;

(*b*) where the court dispenses with the service of the order, when the service of the order on the relevant party is dispensed with by the court; or

(*c*) at such later time as the court may specify.

[17/2019]

(6) Subject to subsection (7), a protection order ceases to have effect after such period as the court may specify in the order.

[17/2019]

(7) The court may, on the application of the victim or a relevant party, vary, suspend or cancel the protection order or extend the duration of the protection order.

[17/2019]

(8) [*Deleted by Act 17 of 2019*]

(9) For the purposes of this section and section 13, the victim of any contravention of section 3 includes only the person to whom the respondent intended to cause harassment, alarm, distress or humiliation, and not any other person harassed, alarmed, distressed or humiliated by that contravention.

[Act 23 of 2025 wef 29/06/2026]

(10) In this section and section 13, "third party" excludes any individual or entity that is likely to publish, or continue to publish, a communication mentioned in subsection (2E) merely by the provision of —

(*a*) an internet intermediary service;

(*b*) a telecommunication service;

(*c*) a service of giving the public access to the internet; or

(*d*) a computing resource service.

Illustration

Following from *Illustration* (*b*) under section 4, Y's mother may apply for a protection order prohibiting X from gathering with others outside her home and from threatening Y at any location.

[17/2019]

(11) To avoid doubt, in this section, a communication that is similar to the offending communication includes a communication that is identical to the offending communication.

[Act 23 of 2025 wef 29/06/2026]

Expedited protection order

13.—(1) Where, upon an application for a protection order under section 12(2), the court is satisfied that —

(*a*) there is prima facie evidence that —

(i) the respondent has contravened section 3, 4, 5, 6 or 7 in respect of the victim;

(ii) the contravention referred to in sub-paragraph (i) is likely to continue, or the respondent is likely to commit a contravention of section 3, 4, 5, 6 or 7 in respect of the victim imminently; and

(iii) the contravention referred to in sub-paragraph (ii), if continued or committed, is likely to have a substantial adverse effect on the victim or the victim's day-to-day activities; and

(*b*) it is just and equitable in all the circumstances for the protection order to be made on an expedited basis,

the court may, subject to section 21(1), make an expedited protection order providing any thing that may be provided in an order under section 12(2).

[17/2019]

(1A) For the purposes of subsection (1)(*a*)(i), the court is deemed to be satisfied that there is prima facie evidence that the respondent has contravened section 3, 4, 5, 6 or 7 in respect of a victim if —

(*a*) the respondent has been convicted of an offence under section 3, 4, 5, 6 or 7, or an offence specified in the Schedule, in respect of the victim; or

(*b*) the court is satisfied that there is prima facie evidence that the respondent has voluntarily caused hurt (within the meaning given by section 321 of the Penal Code 1871) to the victim.

[17/2019]

(1B) A court may, on an application for a protection order under section 12(2E), make an expedited protection order against a third party providing any thing that may be provided in a protection order under section 12(2E), if the court is satisfied that —

(*a*) there is prima facie evidence that —

(i) the respondent's alleged contravention involves an offending communication; and

(ii) the publication of the offending communication or any communication that is similar to the offending communication by any third party mentioned in that subsection is —

(A) imminent or likely to continue; and

(B) likely to have a substantial adverse effect on the victim or the victim's day-to-day activities; and

[Act 23 of 2025 wef 29/06/2026]

(*b*) it is just and equitable in the circumstances to make the protection order on an expedited basis.

[17/2019]

(1C) A court may, on an application for a protection order under section 12(2F), make an expedited protection order against an internet intermediary providing any thing that may be provided in a protection order under section 12(2F), if the court is satisfied that —

(*a*) there is prima facie evidence that —

(i) the respondent's alleged contravention involves an offending communication; and

(ii) the publication of the offending communication by the respondent or the third party mentioned in section 12(2F) is —

(A) imminent or is likely to continue; and

(B) likely to have a substantial adverse effect on the victim or the victim's day-to-day activities; and

(*b*) it is just and equitable in the circumstances to make the protection order on an expedited basis.

[17/2019]

(1D) A court may, on an application for a protection order under section 12(2G), make an expedited protection order against an administrator providing any thing that may be provided in a protection order under section 12(2G), if the court is satisfied that —

(*a*) there is prima facie evidence that —

(i) the respondent's alleged contravention involves an offending communication; and

(ii) the publication of the offending communication by the respondent or the third party mentioned in section 12(2G) is —

(A) imminent or is likely to continue; and

(B) likely to have a substantial adverse effect on the victim or the victim's day-to-day activities; and

(*b*) it is just and equitable in the circumstances to make the protection order on an expedited basis.

[Act 23 of 2025 wef 29/06/2026]

(2) Subsections (1), (1B), (1C) and (1D) apply even if the notice of the application has not been served on the relevant party or has not

been served on the relevant party within a reasonable time before the hearing of the application.

[17/2019]

[Act 23 of 2025 wef 29/06/2026]

(2A) An expedited protection order takes effect in respect of the relevant party —

(*a*) when the order is served on the relevant party in such manner as may be prescribed;

(*b*) where the court dispenses with the service of the order, when the service of the order on the relevant party is dispensed with by the court; or

(*c*) at such later time as the court may specify.

[17/2019]

(3) An expedited protection order ceases to have effect at the earlier of the following times:

(*a*) when the application for a protection order mentioned in subsection (1) is determined or discontinued;

(*b*) when the expedited protection order is suspended or cancelled.

[17/2019]

(3A) A court may vary, suspend or cancel the expedited protection order or extend the duration of the expedited protection order, on the application of —

(*a*) the victim;

(*b*) the relevant party; or

(*c*) if the order requires an internet intermediary to disable access to a third party's communication, or an administrator to stop the publication of a third party's communication, that third party.

[17/2019]

[Act 23 of 2025 wef 29/06/2026]

(3B) The respondent must not make an application under subsection (3A) (to vary, suspend or cancel an expedited protection order) more than 28 days after the date the expedited protection order

takes effect under subsection (2A), unless the court grants the respondent permission to do so.

[17/2019]

[Act 25 of 2021 wef 01/04/2022]

(4) Section 12(4) applies, with the necessary modifications, to an expedited protection order.

[17/2019]

(5) There is no appeal against a decision of the court made under this section.

[Act 31 of 2022 wef 01/11/2022]

(6) To avoid doubt, in this section, a communication that is similar to the offending communication includes a communication that is identical to the offending communication.

[Act 23 of 2025 wef 29/06/2026]

Referral for investigation by police when expedited protection order made

13A.—(1) When a court makes, on or after 1 June 2021, an expedited protection order under section 13 against the respondent, the court must —

(*a*) consider if a criminal investigation into whether the respondent has committed an offence under section 3, 4, 5, 6 or 7 is warranted; and

(*b*) if it is satisfied that such a criminal investigation is warranted, refer the matter to a police officer for investigation.

[17/2019]

(2) Where a court refers a matter for investigation under subsection (1), the court may stay any Part 3 proceedings (except civil proceedings under section 13) that involve the same victim and the same respondent, until —

(*a*) the end of that investigation; or

(*b*) if criminal proceedings are instituted as a result of that investigation, the end of those criminal proceedings.

[17/2019]

(3) This section and any decision of the court under this section does not affect any ability of the court to do the following at any stage of proceedings:

(*a*) consider if a criminal investigation into whether the respondent has committed an offence under section 3, 4, 5, 6 or 7 is warranted;

(*b*) refer any matter to a police officer for investigation.

[17/2019]

(4) Without affecting the court's discretion to consider any other factors, the Minister may, by order in the *Gazette*, prescribe factors that a court must take into account in considering, under subsection (1)(*a*) if a criminal investigation is warranted.

[17/2019]

(5) There is no appeal against the decision of a court under this section.

[17/2019]

Mandatory treatment order where protection order made

13B.—(1) Where a court makes a protection order under section 12(2), the court may, on the application of the victim or on its own initiative, make a mandatory treatment order requiring the respondent to undergo psychiatric treatment for a period not exceeding 36 months.

[17/2019]

(2) A mandatory treatment order may also require the respondent to reside in a psychiatric institution during the whole or a specified part of the period that the respondent is required to undergo psychiatric treatment.

[17/2019]

(3) Before making a mandatory treatment order against a respondent, the court must —

(*a*) have reasonable grounds to believe that —

(i) the respondent is likely to be suffering from a psychiatric condition; and

(ii) that psychiatric condition is likely to be a contributing factor for the respondent's

contravention that formed the basis for making the protection order against the respondent; and

(*b*) call for a formal assessment report in respect of the respondent by an appointed psychiatrist.

[17/2019]

(4) In making a determination under subsection (3)(*a*), the court —

(*a*) may call for a preliminary assessment report by a specified psychiatrist; and

(*b*) must consider any matter prescribed by regulations made under section 20.

[17/2019]

(5) There is no appeal against any decision of the court under this section to call for or not to call for a preliminary assessment report.

[17/2019]

(6) For the purpose of obtaining a preliminary assessment report from a specified psychiatrist in respect of a respondent, the court may order the respondent to attend before the specified psychiatrist at such times and places as the specified psychiatrist may require.

[17/2019]

(7) For the purpose of obtaining a formal assessment report from an appointed psychiatrist in respect of a respondent, the court may order the respondent to —

(*a*) reside in a psychiatric institution for observation for one or more periods (each not exceeding 3 weeks) as the court thinks fit; or

(*b*) attend before the appointed psychiatrist at a psychiatric institution at such times as the appointed psychiatrist may require.

[17/2019]

(8) A court must not make a mandatory treatment order in respect of a respondent unless the formal assessment report in respect of the respondent certifies that —

(*a*) the respondent is suffering from a psychiatric condition that is susceptible to treatment;

(*b*) the respondent is suitable for the treatment; and

(*c*) the psychiatric condition is a contributing factor for the respondent's contravention that formed the basis for making the protection order against the respondent.

[17/2019]

(9) A court must not make a mandatory treatment order in respect of a respondent if the formal assessment report in respect of the respondent certifies that the appointed psychiatrist is not satisfied as to any of the matters mentioned in subsection (8)(*a*), (*b*) or (*c*).

[17/2019]

(10) In assessing whether a respondent is a person suitable for treatment for the respondent's psychiatric condition, the appointed psychiatrist may take into account the following factors:

(*a*) whether the respondent is likely to attend the treatment sessions at such time and place as the appointed psychiatrist may require;

(*b*) the physical and mental state of the respondent;

(*c*) the respondent's financial standing and ability to pay all or any part of the costs of the treatment that it is reasonable for the respondent to pay.

[17/2019]

(11) Where a court calls for a formal assessment report in respect of a respondent, the respondent may submit any report by another psychiatrist, engaged by the respondent, to the appointed psychiatrist not later than —

(*a*) the end of a period of 3 weeks after the date the court calls for the formal assessment report; or

(*b*) such later time as the court may allow.

[17/2019]

(12) Before making a formal assessment report, the appointed psychiatrist must take into consideration any report submitted by the respondent under subsection (11).

[17/2019]

(13) Any report by the appointed psychiatrist is to be taken to be final and conclusive as to the matters mentioned in subsection (8)(*a*), (*b*) and (*c*).

[17/2019]

(14) The court must extend to the respondent or the respondent's advocate a copy of every preliminary assessment report and formal assessment report made in respect of the respondent.

[17/2019]

(15) A court may include the requirement in subsection (2) in a mandatory treatment order only on the recommendation of the appointed psychiatrist.

[17/2019]

(16) A court may impose such conditions as the court thinks fit when making a mandatory treatment order.

[17/2019]

(17) Before making a mandatory treatment order, the court must explain to the respondent in ordinary language —

(*a*) the purpose and effect of the order, and in particular the obligations of the respondent as specified in subsection (21);

(*b*) the consequences which may follow if the respondent fails to comply with any of those obligations, or any conditions of the order; and

(*c*) that the court has the power, under subsection (18), to vary or revoke the order on the application of the appointed psychiatrist.

[17/2019]

(18) The court may, on the application of the appointed psychiatrist and whether or not the respondent has failed to comply with subsection (21) —

(*a*) vary a mandatory treatment order (including reducing or extending the period that the respondent has to undergo psychiatric treatment) or the conditions of the order in such manner as the court thinks just and expedient in the circumstances; or

(*b*) after taking into account the extent to which the respondent has complied with the order, revoke the order.

[17/2019]

(19) The court may vary or revoke a mandatory treatment order under subsection (18) if such variation or revocation is justified in view of —

(*a*) any change of the circumstances after the order was made; or

(*b*) the progress the respondent has made in the treatment.

[17/2019]

(20) Where, under subsection (18)(*a*), a court extends the period that the respondent has to undergo psychiatric treatment under a mandatory treatment order, the period of psychiatric treatment must not exceed 36 months from the date the order is first in force.

[17/2019]

(21) A respondent in respect of whom a mandatory treatment order is in force must —

(*a*) attend the treatment sessions on such day and at such time and place as the appointed psychiatrist may require;

(*b*) comply with all other conditions in connection with the respondent's treatment as the appointed psychiatrist may require; and

(*c*) comply with all other conditions or requirements of the order.

[17/2019]

(22) The Minister charged with the responsibility for health may make regulations in relation to the treatment of a person subject to a mandatory treatment order.

[17/2019]

(23) To avoid doubt, failure to comply with subsection (21) or disobedience with or breach of an order under subsection (6) or (7), if intentional, is a contempt of court.

[17/2019]

(24) In this section —

"appointed psychiatrist" means a psychiatrist appointed by the Director-General of Health for the purposes of this section;

[Act 11 of 2023 wef 01/05/2023]

"specified psychiatrist" means a psychiatrist specified by the court calling for a preliminary assessment report under subsection (4)(*a*).

[17/2019]

(25) To avoid doubt, this section does not apply to any criminal proceedings or affect the application of section 339 of the Criminal Procedure Code 2010 in criminal proceedings.

[17/2019]

No civil action for common law tort of harassment

14.—(1) The common law tort of harassment is, to avoid doubt, declared to be abolished and no civil proceedings may be brought for the tort of harassment except under this Act.

(2) Nothing in subsection (1) prevents the commencement of proceedings for any act or conduct which occurred before 15 November 2014.

Division 2 — Orders relating to false statements

General provisions applicable to orders under sections 15A to 15E

15.—(1) This section applies to the following orders:

(*a*) a stop publication order;

(*b*) a correction order;

(*c*) a disabling order;

(*d*) a targeted correction order;

(*e*) a general correction order;

[Act 23 of 2025 wef 29/06/2026]

(*f*) a correction (administrator) order;

[Act 23 of 2025 wef 29/06/2026]

(*g*) a stop publication (administrator) order.

[17/2019]

[Act 23 of 2025 wef 29/06/2026]

(2) An order mentioned in subsection (1) takes effect in respect of a relevant party —

(*a*) when the order is served on the relevant party in such manner as may be prescribed;

(*b*) where a court dispenses with the service of the order, when the service of the order on the relevant party is dispensed with by a court; or

(*c*) at such later time as a court may specify.

[17/2019]

(3) An order mentioned in subsection (1) may be made in respect of a false statement of fact even if the false statement has been amended or has ceased to be published.

[17/2019]

(4) An order mentioned in subsection (1) may —

(*a*) be made against a relevant party whether or not the relevant party is in or outside Singapore, is incorporated or established in or outside Singapore, or has its management or control in or outside Singapore; and

(*b*) require a relevant party to do or refrain from doing an act in or outside Singapore.

[17/2019]

(5) A court may vary, suspend or cancel an order mentioned in subsection (1), on the application of —

(*a*) the subject or the author of the false statement;

(*b*) the relevant party; or

(*c*) an individual or entity that published the relevant statement to which the order relates.

[17/2019]

(6) An order mentioned in subsection (1) ceases to have effect —

(*a*) during any period when the order is suspended under subsection (5); and

(*b*) when the order expires, or is cancelled under subsection (5).

[17/2019]

Stop publication order

15A.—(1) A court may, on an application by the subject of an alleged false statement of fact (called in this section the relevant statement), make a stop publication order against any individual or entity (called in this section the respondent), if —

(*a*) the court is satisfied on the balance of probabilities that —

(i) the respondent has published the relevant statement; and

(ii) the relevant statement is a false statement of fact; and

(*b*) it is just and equitable in the circumstances to make the stop publication order.

[17/2019]

(2) A stop publication order may be made against a respondent even if the respondent does not know or have reason to believe that the relevant statement is false.

[17/2019]

(3) A stop publication order may require the respondent or any other individual or entity to stop publishing the relevant statement, and not to publish any similar statement, by a specified time.

[17/2019]

[Act 23 of 2025 wef 29/06/2026]

(4) In this section —

(*a*) "specified" means specified in the stop publication order; and

(*b*) the respondent or any other individual or entity does not publish a statement merely by doing any act for the purpose of, or that is incidental to, the provision of —

(i) an internet intermediary service;

(ii) a telecommunication service;

(iii) a service of giving the public access to the internet; or

(iv) a computing resource service.

(5) To avoid doubt, in this section, a statement that is similar to the relevant statement includes a statement that is identical to the relevant statement.

[17/2019]

[Act 23 of 2025 wef 29/06/2026]

Correction order

15B.—(1) A court may, on an application by the subject of an alleged false statement of fact (called in this section a relevant statement), make a correction order against an individual or entity (called in this section the respondent), if —

(*a*) the court is satisfied on the balance of probabilities that —

(i) the respondent has published the relevant statement; and

(ii) the relevant statement is a false statement of fact; and

(*b*) it is just and equitable in the circumstances to make the correction order.

[17/2019]

(2) A correction order may be made against a respondent even if the respondent does not know or have reason to believe that the relevant statement is false.

[17/2019]

(3) A correction order may require the respondent to publish in Singapore a correction notice, within a specified time —

(*a*) to any specified person or description of persons; and

(*b*) in a specified form and manner, which may include publication —

(i) at a specified online location or in a specified newspaper or other printed publication of Singapore; or

(ii) in specified proximity to every copy of the relevant statement, or of any substantially similar statement, that is published by the respondent.

[17/2019]

(4) A correction notice must contain all or any of the following as may be specified in the correction order:

(*a*) a statement, in such terms as may be specified, that the court has determined the relevant statement is false, or that such material as may be specified contains a false statement of fact;

(*b*) a statement, in such terms as may be specified, correcting the false statement of fact, or a reference to a specified location where such a statement may be found.

[17/2019]

(5) In this section —

(*a*) "specified" means specified in the correction order; and

(*b*) the respondent does not publish a statement merely by doing any act for the purpose of, or that is incidental to, the provision of —

(i) an internet intermediary service;

(ii) a telecommunication service;

(iii) a service of giving the public access to the internet; or

(iv) a computing resource service.

[17/2019]

(6) To avoid doubt, in this section, a statement that is substantially similar to the relevant statement includes a statement that is identical to the relevant statement.

[Act 23 of 2025 wef 29/06/2026]

Disabling order

15C.—(1) A court may, on an application by the subject of an alleged false statement of fact (called in this section the relevant statement), make a disabling order against an internet intermediary (called in this section the respondent) if —

(*a*) the court is satisfied on the balance of probabilities that —

(i) any material consisting of or containing the relevant statement has been or is being published by means of

an internet intermediary service provided by the respondent; and

(ii) the relevant statement is a false statement of fact; and

(*b*) it is just and equitable in the circumstances to make the disabling order.

[17/2019]

(2) A disabling order may require the respondent to disable access by end-users of the internet intermediary service provided by the respondent in Singapore, within a specified time, to —

(*a*) any specified material provided on or through the service that consists of or contains the relevant statement; and

(*b*) where the respondent is a prescribed internet intermediary — the specified material mentioned in paragraph (*a*) or any identical copies of the specified material.

[17/2019]

(3) An end-user who accesses a part of any material is taken to access the material.

[17/2019]

(4) In this section, "specified" means specified in the disabling order.

[Act 23 of 2025 wef 29/06/2026]

Stop publication (administrator) order

15CA.—(1) A court may, on an application by the subject of an alleged false statement of fact (called in this section the relevant statement), make a stop publication (administrator) order against an administrator of an online location (called in this section the respondent) if —

(*a*) the court is satisfied on the balance of probabilities that —

(i) any material consisting of or containing the relevant statement has been or is being published on the online location; and

(ii) the relevant statement is a false statement of fact; and

(*b*) it is just and equitable in the circumstances to make the stop publication (administrator) order.

(2) A stop publication (administrator) order may require the respondent to stop, within a specified time, the publication in Singapore of any specified material on the online location administered by the respondent that consists of or contains the relevant statement, or any similar copy of the specified material.

(3) In this section, "specified" means specified in the stop publication (administrator) order.

(4) To avoid doubt, in this section, material that is similar to the specified material includes material that is identical to the specified material.

[Act 23 of 2025 wef 29/06/2026]

Correction (administrator) order

15CB.—(1) A court may, on an application by the subject of an alleged false statement of fact (called in this section the relevant statement), make a correction (administrator) order against an administrator of an online location (called in this section the respondent) if —

(*a*) the court is satisfied on the balance of probabilities that —

(i) any material consisting of or containing the relevant statement has been or is being published on the online location; and

(ii) the relevant statement is a false statement of fact; and

(*b*) it is just and equitable in the circumstances to make the correction (administrator) order.

(2) A correction (administrator) order may require the respondent to publish in Singapore a correction (administrator) notice, within a specified time —

(*a*) to any specified person or description of persons; and

(*b*) in a specified form and manner, which may include publication at a specified online location, or in specified proximity to every copy of the specified material published

on the online location administered by the respondent that consists of or contains the relevant statement.

(3) A correction (administrator) notice must contain all or any of the following as may be specified in the correction (administrator) order:

(*a*) a statement, in such terms as may be specified, that the court has determined the specified material consists of or contains a false statement of fact;

(*b*) a statement, in such terms as may be specified, correcting the false statement of fact, or a reference to a specified location where the statement may be found.

(4) In this section, "specified" means specified in the correction (administrator) order.

[Act 23 of 2025 wef 29/06/2026]

Targeted correction order

15D.—(1) A court may, on an application by the subject of an alleged false statement of fact (called in this section the relevant statement), make a targeted correction order against an internet intermediary (called in this section the respondent) if —

(*a*) the court is satisfied on the balance of probabilities that —

(i) any material consisting of or containing the relevant statement has been or is being published by means of an internet intermediary service provided by the respondent; and

(ii) the relevant statement is a false statement of fact; and

(*b*) it is just and equitable in the circumstances to make the targeted correction order.

[17/2019]

(2) A targeted correction order may require the respondent to publish a targeted correction notice —

(*a*) by means of the internet intermediary service, to all end-users in Singapore who access any specified material provided on or through the service that consists of or

contains the relevant statement from any specified time; and

(*b*) where the respondent is a prescribed internet intermediary — by any means and by a specified time, to all end-users in Singapore that the respondent knows had accessed the specified material mentioned in paragraph (*a*) or any identical copies of the specified material by means of the internet intermediary service.

[17/2019]

(3) A targeted correction notice must contain all or any of the following as may be specified in the targeted correction order:

(*a*) a statement, in such terms as may be specified, that the court has determined the specified material consists of or contains a false statement of fact;

(*b*) a statement, in such terms as may be specified, correcting the false statement of fact, or a reference to a specified location where the statement may be found.

[17/2019]

(4) An end-user who accesses a part of any material is taken to access the material.

[17/2019]

(5) In this section, "specified" means specified in the targeted correction order.

[Act 23 of 2025 wef 29/06/2026]

General correction order

15E.—(1) A court may, on an application by the subject of an alleged false statement of fact (called in this section the relevant statement), make a general correction order against a prescribed individual or entity (called in this section the respondent), if —

(*a*) the court is satisfied on the balance of probabilities that —

(i) the relevant statement is a false statement of fact; and

(ii) the publication of the relevant statement has caused or is likely to cause serious harm to the reputation of the subject; and

(*b*) it is just and equitable in the circumstances to make the general correction order.

[17/2019]

(2) A general correction order may require the respondent to publish in Singapore a general correction notice within a specified time in a specified form and manner —

(*a*) where the respondent is a prescribed holder of a permit under section 21 of the Newspaper and Printing Presses Act 1974 — in a specified newspaper or other printed publication, printed or published by the respondent;

(*b*) where the respondent is a prescribed broadcasting licensee within the meaning of the Broadcasting Act 1994 — by a specified broadcasting service provided by the respondent;

(*c*) where the respondent is a prescribed holder of a licence under section 5 of the Telecommunications Act 1999 — by a specified telecommunication system or service run by the respondent;

(*d*) where the respondent is a prescribed internet intermediary —

(i) by a specified internet intermediary service provided by the respondent; or

(ii) to all end-users, or a specified class of end-users, in Singapore who use that internet intermediary service at any time after the general correction order is served; and

(*e*) in any other case — by any specified means within the control of the respondent.

[17/2019]

(3) A general correction notice must contain all or any of the following as may be specified in the general correction order:

(*a*) a statement, in such terms as may be specified, that the court has determined that the relevant statement is false;

(*b*) a statement, in such terms as may be specified, correcting the false statement of fact, or a reference to a specified location where the statement may be found.

(4) In this section, "specified" means specified in the general correction order.

Illustrations

(*a*) X publishes a false statement that Y, a lawyer, had misappropriated client moneys. As a result, Y's clients terminate their contracts for Y's services. Y has suffered serious harm to Y's reputation.

(*b*) X makes a false statement that Y, a married female, had committed adultery with multiple men. The statement is widely published on social media. Y has suffered serious harm to Y's reputation.

[17/2019]

General provisions applicable to interim orders

16.—(1) Where an application by the subject of an alleged false statement of fact (called in this section and sections 16A, 16AA, 16AB, 16B, 16BA and 16BAA a relevant statement) for an order mentioned in paragraph (*a*), (*b*), (*c*), (*d*), (*e*) or (*f*) is pending against a respondent in relation to that application, the subject may also apply for the interim order mentioned in that paragraph to be made against that respondent:

(*a*) a stop publication order — an interim stop publication order or an interim notification order;

(*b*) a correction order — an interim notification order;

(*c*) a disabling order — an interim disabling order;

(*d*) a targeted correction order — a targeted interim notification order;

[Act 23 of 2025 wef 29/06/2026]

(*e*) a stop publication (administrator) order — an interim stop publication (administrator) order;

[Act 23 of 2025 wef 29/06/2026]

(*f*) a correction (administrator) order — an interim notification (administrator) order.

[17/2019]

[Act 23 of 2025 wef 29/06/2026]

(2) Sections 16A and 16B apply despite any of the following:

(*a*) that notice of the application has not been served on the respondent;

(*b*) that notice of the application has not been served, within a reasonable time before the hearing of the application, on the respondent.

[17/2019]

(3) An interim order takes effect in respect of the respondent —

(*a*) when the order is served on the respondent in such manner as may be prescribed;

(*b*) where the court dispenses with the service of the order, when the service of the order on the respondent is dispensed with by the court; or

(*c*) at such later time as the court may specify.

[17/2019]

(4) An interim order under this section may be made in respect of a relevant statement even if the statement has been amended or has ceased to be published in Singapore.

[17/2019]

(5) There is no appeal against a decision of the court in relation to an interim order under this section.

[17/2019]

(6) The court may vary, suspend or cancel an interim order under this section, on the application of —

(*a*) the subject or author of the relevant statement;

(*b*) the respondent; or

(*c*) an individual or entity that published the relevant statement.

[17/2019]

(7) An interim order made under this section remains in effect until it expires, or is cancelled under subsection (6).

[17/2019]

(8) An interim order under this section may be made subject to such exceptions or conditions as may be specified in the order.

[17/2019]

Interim stop publication order

16A.—(1) A court may make an interim stop publication order against the respondent in relation to an application for a stop publication order if —

(*a*) the court is satisfied that there is prima facie evidence that —

(i) the respondent published or continues to publish the relevant statement;

(ii) the relevant statement is a false statement of fact; and

(iii) the publication of the relevant statement by the respondent has caused or is likely to cause the subject harm; and

(*b*) it is just and equitable in the circumstances to make the stop publication order on an expedited basis.

[17/2019]

(2) Section 15A(2), (3) and (4) applies to an interim stop publication order as it applies to a stop publication order.

[17/2019]

Interim disabling order

16AA.—(1) A court may make an interim disabling order against the respondent in relation to an application for a disabling order if —

(*a*) the court is satisfied that there is prima facie evidence that —

(i) any material consisting of or containing the relevant statement (called in this section the specified material) has been or is being published by means

of an internet intermediary service provided by the respondent;

(ii) the relevant statement is a false statement of fact; and

(iii) the publication of the specified material by means of the service has caused or is likely to cause the subject harm; and

(*b*) it is just and equitable in the circumstances to make the disabling order on an expedited basis.

[17/2019]

(2) Section 15C(2) and (3) applies to an interim disabling order as it applies to a disabling order.

[17/2019]

Interim stop publication (administrator) order

16AB.—(1) A court may make an interim stop publication (administrator) order against the respondent in relation to an application for a stop publication (administrator) order if —

(*a*) the court is satisfied that there is prima facie evidence that —

(i) any material consisting of or containing the relevant statement (called in this section the specified material) has been or is being published on an online location;

(ii) the relevant statement is a false statement of fact; and

(iii) the publication of the specified material on the online location administered by the respondent has caused or is likely to cause the subject harm; and

(*b*) it is just and equitable in the circumstances to make the stop publication (administrator) order on an expedited basis.

(2) Section 15CA(2) and (3) applies to an interim stop publication (administrator) order as it applies to a stop publication (administrator) order.

[Act 23 of 2025 wef 29/06/2026]

Interim notification order

16B.—(1) A court may make an interim notification order against the respondent in relation to an application for a correction order or a stop publication order if —

(*a*) the court is satisfied that there is prima facie evidence that —

(i) the respondent published or continues to publish the relevant statement;

(ii) the relevant statement is a false statement of fact; and

(iii) the publication of the relevant statement by the respondent has caused or is likely to cause the subject harm; and

(*b*) it is just and equitable in the circumstances to make the interim notification order.

[17/2019]

(2) An interim notification order may require the respondent to publish an interim notice, within a specified time —

(*a*) to any specified person or description of persons; and

(*b*) in a specified form and manner, which may include publication —

(i) at a specified online location or in a specified newspaper or other printed publication of Singapore; or

(ii) in specified proximity to every copy of the relevant statement, or of any substantially similar statement, that is published by the respondent.

[17/2019]

(3) An interim notice must —

(*a*) state that there is a pending application for a correction order or a stop publication order or both (as the case may be) in respect of the relevant statement; and

(*b*) be in such form and published in such manner as may be specified in the interim notification order.

[17/2019]

(4) Section 15B(2) and (5) applies to an interim notification order as it applies to a correction order.

[17/2019]

(5) To avoid doubt, in this section, a statement that is substantially similar to the relevant statement includes a statement that is identical to the relevant statement.

[Act 23 of 2025 wef 29/06/2026]

Targeted interim notification order

16BA.—(1) A court may make a targeted interim notification order against the respondent in relation to an application for a targeted correction order if —

(*a*) the court is satisfied that there is prima facie evidence that —

(i) any material consisting of or containing the relevant statement (called in this section the specified material) has been or is being published by means of an internet intermediary service provided by the respondent;

(ii) the relevant statement is a false statement of fact; and

(iii) the publication of the specified material by means of the service has caused or is likely to cause the subject harm; and

(*b*) it is just and equitable in the circumstances to make the targeted interim notification order.

[17/2019]

(2) A targeted interim notification order may require the respondent to publish a targeted interim notice —

(*a*) by means of the internet intermediary service to all end-users in Singapore who access any specified material provided on or through the service that consists

of or contains the relevant statement from any specified time; and

[Act 23 of 2025 wef 29/06/2026]

(*b*) where the respondent is a prescribed internet intermediary — by any means and by a specified time, to all end-users in Singapore that the respondent knows had accessed the specified material mentioned in paragraph (*a*) or any identical copies of the specified material by means of the internet intermediary service.

[17/2019]

(3) A targeted interim notice must —

(*a*) state that there is a pending application for a targeted correction order in respect of the specified material; and

(*b*) be in such form and published in such manner as may be specified in the targeted interim notification order.

[17/2019]

(4) An end-user who accesses a part of any material is taken to access the material.

[17/2019]

Interim notification (administrator) order

16BAA.—(1) A court may make an interim notification (administrator) order against the respondent in relation to an application for a correction (administrator) order if —

(*a*) the court is satisfied that there is prima facie evidence that —

(i) any material consisting of or containing the relevant statement (called in this section the specified material) has been or is being published on an online location;

(ii) the relevant statement is a false statement of fact; and

(iii) the publication of the specified material on the online location administered by the respondent has caused or is likely to cause the subject harm; and

(*b*) it is just and equitable in the circumstances to make the interim notification (administrator) order.

(2) An interim notification (administrator) order may require the respondent to publish in Singapore an interim (administrator) notice, within a specified time —

(*a*) to any specified person or description of persons; and

(*b*) in a specified form and manner, which may include publication at a specified online location, or in specified proximity to every copy of the specified material published on the online location administered by the respondent that consists of or contains the relevant statement.

(3) An interim (administrator) notice must —

(*a*) state that there is a pending application for a correction (administrator) order in respect of the specified material; and

(*b*) be in such form and published in such manner as may be specified in the interim notification (administrator) order.

[Act 23 of 2025 wef 29/06/2026]

Publication of notices

16BB.—(1) A person who is required to publish any of the following notices must ensure that they are easily perceived:

(*a*) a targeted correction notice;

(*b*) a general correction notice;

(*c*) a targeted interim notice.

[17/2019]

(2) Subject to subsection (3), a notice is easily perceived if —

(*a*) a notice (not being an audio recording) is conspicuous, regardless of the type of platform or device used by the end-user or viewer;

Illustration

A notice that is in a text form is conspicuous if it is sufficiently differentiated from the background and is of a reasonable type size compared to the rest of the text on the same page.

(*b*) the notice is easy to read, view or listen to, and not easy to miss;

Illustrations

(*a*) Where the notice is an audio recording, it is easy to listen to it if it is in a volume and cadence sufficient for it to be heard and understood.

(*b*) Where the notice is a video recording or a dynamic display, it is easy to view if it appears for a duration sufficient for it to be viewed and understood.

(*c*) A notice that is in a text form or the form of a video recording or dynamic display is easy to miss if it is contained in a pop-up window, insofar as access to it may be easily disabled.

(*c*) the notice (not being an audio recording) is placed near the subject statement (where relevant), and in a location where end-users or viewers are likely to look; or

(*d*) the end-user is required to access another online location in order to comprehend the notice.

Illustration

An example of such requirement is the mere provision of a hyperlink to the notice or a part of it.

[17/2019]

(3) For the purposes of this section, without limiting the manner of complying with subsection (1), a notice is taken to be easily perceived if the notice is published in accordance with such measures as may be prescribed by regulations made under section 20 (called in this section the prescribed measures).

[17/2019]

(4) The measures required to be taken under a targeted correction order, general correction order or targeted interim notification order must not be inconsistent with the prescribed measures.

[17/2019]

Division 3 — General

Person who may appeal

16C. The persons who may appeal against a decision made by any court in relation to the following orders are —

(*a*) in the case of a protection order —

(i) the applicant for the order;

(ii) the relevant party in relation to the order; or

(iii) if the protection order requires an internet intermediary to disable access to a third party's communication, or an administrator to stop the publication of a third party's communication, that third party;

[Act 23 of 2025 wef 29/06/2026]

(*b*) in the case of a mandatory treatment order —

(i) the applicant for the order; or

(ii) the respondent; and

(*c*) in the case of a stop publication order, a correction order, a disabling order, a targeted correction order, a stop publication (administrator) order, a correction (administrator) order or a general correction order —

(i) the applicant for the order;

(ii) the relevant party in relation to the order;

(iii) the author of the relevant statement to which the order relates; or

(iv) an individual or entity that published the relevant statement to which the order relates.

[17/2019]

[Act 23 of 2025 wef 29/06/2026]

Costs

16CA. When granting a general correction order in respect of a false statement of fact, the court may order that the whole or any part of the costs reasonably incurred by a prescribed person or prescribed internet intermediary in complying with the order be paid by any of the following:

(*a*) the author of the false statement of fact, if the author authorised or caused that statement to be published;

(*b*) any person or entity that intentionally published the false statement of fact or any material consisting of or containing the false statement of fact;

(*c*) the subject who applied for the order.

[17/2019]

Service of orders

16CB. An order made under this Act may be served by such means as may be prescribed by Rules of Court made under section 19 or, where applicable, the Family Justice Rules made under section 19A.

[17/2019]

Compliance with orders

16D.—(1) A relevant party must comply with an order under this Part within the specified time despite —

(*a*) any contrary duty or obligation under any written law or rule of law, any contract or any rule of professional conduct applicable to the relevant party; and

(*b*) any costs of complying with the order being owed to the relevant party.

[17/2019]

(2) No civil or criminal liability is incurred by a relevant party, or an officer, employee or agent of the relevant party, for doing or omitting to do any act, if the act or omission is done —

(*a*) with reasonable care and in good faith; and

(*b*) for the purpose of complying with or giving effect to an order made under Division 1 or 2 against that relevant party.

[17/2019]

(3) Subsection (2) does not apply to the respondent of a protection order made under section 12(2), or of an expedited protection order under section 13(1) in relation to a protection order under section 12(2).

[17/2019]

(4) Subject to section 10(3), disobedience or breach of an order made under this Part, if intentional, is a contempt of court.

[17/2019]

PART 3A

PROTECTION FROM HARASSMENT COURT

Protection from Harassment Court

16E.—(1) The Presiding Judge of the State Courts may —

(*a*) designate one or more District Courts as Protection from Harassment Courts; and

(*b*) designate so many District Judges, as may be necessary, as Protection from Harassment Court Judges.

[17/2019]

(2) A Protection from Harassment Court is to be presided over by a Protection from Harassment Court Judge designated under subsection (1)(*b*).

[17/2019]

Jurisdiction, powers and duties of Registrar

16F. Subject to this Act and any other written law, the Registrar has such jurisdiction, powers and duties as may be prescribed by Rules of Court.

[17/2019]

Jurisdiction of Protection from Harassment Court

16G. A Protection from Harassment Court has all the civil jurisdiction and criminal jurisdiction of a District Court.

[17/2019]

Application of other written laws to Protection from Harassment Court

16H. Subject to this Act, and except as otherwise provided in any regulations made under section 20 —

(*a*) the provisions of the State Courts Act 1970 apply to the Protection from Harassment Courts;

(*b*) unless the context otherwise requires, any reference in any written law to a District Court or a State Court includes a reference to a Protection from Harassment Court; and

(*c*) unless the context otherwise requires, any reference in any written law to a District Judge or a judicial officer includes a reference to a Protection from Harassment Court Judge.

[17/2019]

Commencement of Part 3 proceedings

16I.—(1) Subject to subsection (2), any Part 3 proceedings that may be heard and determined by a Protection from Harassment Court must in the first instance be commenced in a Protection from Harassment Court.

[17/2019]

(2) Despite subsection (1) —

(*a*) a claim under section 11 may be commenced in the first instance in a Magistrate's Court or the General Division of the High Court;

(*b*) Part 3 proceedings may be commenced in the first instance in a District Court (other than the Protection from Harassment Court); and

(*c*) Part 3 proceedings (except any Part 3 proceedings involving any claim under section 11) may be commenced in the first instance in a Family Court,

in which any related proceeding is pending, with the permission of that court.

[17/2019; 40/2019]

[Act 25 of 2021 wef 01/04/2022]

(3) A court may grant permission under subsection (2) only if it is just, expeditious and economical for the disposal of the Part 3 proceedings, for the Part 3 proceedings to be commenced in that court.

[17/2019]

[Act 25 of 2021 wef 01/04/2022]

(4) Civil proceedings (other than Part 3 proceedings) may be commenced in the first instance in a Protection from Harassment Court only if those civil proceedings are —

(*a*) related to any Part 3 proceedings that have been or will be commenced in the Protection from Harassment Court; and

(*b*) commenced in the Protection from Harassment Court on or after the commencement of the related Part 3 proceedings.

[17/2019]

(5) Civil proceedings may, under this section, be commenced in a court only if the civil proceedings are within the civil jurisdiction of that court.

[17/2019]

(6) In this section, proceedings are related to Part 3 proceedings if —

(*a*) both of those proceedings involve any common issue of law or fact; or

(*b*) the rights to relief claimed in both of those proceedings are in respect of the same conduct or course of conduct.

[Act 31 of 2022 wef 01/11/2022]

Transfer of Part 3 proceedings

16J.—(1) A District Court (other than the Protection from Harassment Court) may, on the application of any party or on the District Court's own initiative, order that any Part 3 proceedings or related civil proceedings (or both) pending in the District Court or a Magistrate's Court be transferred to the Protection from Harassment Court, if there is sufficient reason to do so.

[17/2019]

(2) A Family Court may, on the application of any party or on the Family Court's own initiative, order that any Part 3 proceedings pending in the Family Court be transferred to the Protection from Harassment Court, if there is sufficient reason to do so.

[17/2019]

(3) A Protection from Harassment Court may, on the application of any party or on the Court's initiative, if it is just, expeditious and economical for the disposal of the Part 3 proceedings, transfer —

(*a*) any claim under section 11 that is pending in the Protection from Harassment Court to a Magistrate's Court in which any related civil proceeding is pending;

(*b*) any Part 3 proceedings that are pending in the Protection from Harassment Court to a District Court in which any related civil proceeding is pending; or

(*c*) any Part 3 proceedings (except any claim under section 11) that are pending in the Protection from Harassment Court to a Family Court in which any related family proceeding is pending.

[17/2019]

(4) A Protection from Harassment Court may, on the application of any party or on the Court's initiative, transfer any civil proceedings (other than Part 3 proceedings) that are pending in the Protection from Harassment Court to a Magistrate's Court or a District Court, if there is sufficient reason to do so.

[17/2019]

(5) Civil proceedings may, under this section, be commenced in or transferred to a court only if the civil proceedings are within the civil jurisdiction of that court.

[17/2019]

(6) In this section —

(*a*) "family proceedings" has the meaning given by section 2(1) of the Family Justice Act 2014; and

(*b*) proceedings are related to Part 3 proceedings if —

(i) both of those proceedings involve any common issue of law or fact; or

(ii) the rights to relief claimed in both of those proceedings are in respect of the same conduct or course of conduct.

[17/2019]

(7) Sections 54A and 54D of the State Courts Act 1970 do not apply to the transfer of any Part 3 proceedings.

[17/2019]

(8) This section does not affect any power of the General Division of the High Court to transfer proceedings to itself or to any other court under section 54B or 54C of the State Courts Act 1970 or any other law.

[17/2019; 40/2019]

PART 4

GENERAL

Application to person outside Singapore

17.—(1) Without affecting the jurisdiction and power conferred under this Act or any other written law, the court has in the circumstances specified in subsections (2) to (6) —

(*a*) jurisdiction to try any offence under section 3, 4, 5, 6 or 7 and impose the full punishment under this Act; and

(*b*) jurisdiction to make any order under section 12 or 13 on the basis of a contravention of section 3, 4, 5, 6 or 7.

(2) Where the victim under section 3, 4, 5 or 6 was outside Singapore when the accused or respondent (as the case may be) used the words or behaviour, made the communication or published the identity information, in contravention of any such section, the court has jurisdiction if the accused or respondent (as the case may be) was in Singapore when that accused or respondent used those words or behaviour, made that communication or published that identity information, as the case may be.

[17/2019]

(3) Where the accused or respondent (as the case may be) was outside Singapore when that accused or respondent used the words or behaviour, made the communication or published the identity information, in contravention of section 3, the court has jurisdiction if —

(*a*) the victim of the contravention was in Singapore when the use of those words or behaviour, the making of that communication or that publication of identity information

caused the victim harassment, alarm, distress or humiliation; and

[Act 23 of 2025 wef 29/06/2026]

(*b*) the accused or respondent (as the case may be) knew or had reason to believe that the victim of the contravention would be in Singapore at the time referred to in paragraph (*a*).

[17/2019]

(4) Where the accused or respondent (as the case may be) was outside Singapore when that accused or respondent used the words or behaviour, made the communication or published the identity information, in contravention of section 4, 5 or 6, the court has jurisdiction if —

(*a*) the victim of the contravention was in Singapore when the victim heard, saw or otherwise perceived those words or behaviour, that communication or that identity information; and

(*b*) the accused or respondent (as the case may be) knew or had reason to believe that the victim of the contravention would be in Singapore at the time referred to in paragraph (*a*).

[17/2019]

(5) Where the victim under section 7 was outside Singapore when any of the acts or omissions associated with unlawful stalking occurred in contravention of that section, the court has jurisdiction if the accused or respondent (as the case may be) was in Singapore when any of those acts or omissions occurred.

[17/2019]

(6) Where the accused or respondent (as the case may be) was outside Singapore when any of the acts or omissions associated with unlawful stalking occurred in contravention of section 7, the court has jurisdiction if —

(*a*) the victim of the contravention was in Singapore when any of those acts or omissions occurred; and

(*b*) the accused or respondent (as the case may be) knew or had reason to believe that the victim of the contravention was in Singapore at the time referred to in paragraph (*a*).

[17/2019]

(7) Without affecting the jurisdiction and power conferred under this Act or any other written law, the court has in the circumstances specified in subsections (8) and (9) jurisdiction to try any offence under section 10 for failure to comply with an order and impose the full punishment under this Act.

(8) In the case of an order prohibiting the respondent from doing any thing in relation to the victim or to any related person specified in the order, where the victim or the related person was outside Singapore when the respondent did any thing prohibited by the order, the court has jurisdiction if the respondent was in Singapore when that respondent did that thing.

[17/2019]

(9) In the case of an order prohibiting the respondent from doing any thing in relation to the victim or to any related person specified in the order, the court has jurisdiction —

(*a*) where the respondent was outside Singapore when that respondent failed to comply with an order prohibiting him or her from doing any thing in relation to the victim, if —

(i) the victim was in Singapore when the thing done by the respondent in contravention of the order was heard, seen or otherwise perceived by the victim; and

(ii) the respondent knew or had reason to believe that the victim would be in Singapore at the time referred to in sub-paragraph (i);

(*b*) where the respondent was outside Singapore when that respondent failed to comply with an order prohibiting him or her from doing any thing in relation to any related person specified in the order, if —

(i) the related person was in Singapore when the thing done by the respondent in contravention of the order was heard, seen or otherwise perceived by the related person; and

(ii) the respondent knew or had reason to believe that the related person would be in Singapore at the time referred to in sub-paragraph (i); and

(*c*) where the respondent was outside Singapore when that respondent failed to comply with an order prohibiting him or her from publishing or continuing to publish any communication, if —

(i) the communication was heard, seen or otherwise perceived by a section of the public in Singapore; and

(ii) the respondent knew or had reason to believe that communication would be heard, seen or otherwise perceived by a section of the public in Singapore.

[17/2019]

(10) In subsections (8) and (9) —

(*a*) "victim", in relation to an offence under section 10 for failure to comply with an order, means the victim under section 3, 4, 5, 6 or 7 (as the case may be) in whose favour the order was made;

(*b*) "respondent", in relation to an offence under section 10 for failure to comply with an order, means the person who is alleged to have failed to comply with the order in contravention of section 10; and

(*c*) a reference to any thing done by the respondent includes any words or behaviour used or communication made by the respondent.

Power of arrest

18.—(1) Any police officer may arrest without warrant any person offending in his or her view against any of the provisions of this Act, and take the person before a Magistrate's Court to be dealt with according to law.

[17/2019]

(2) Any police officer may also arrest without warrant any person reasonably suspected of having committed an offence under section 10(1) in the circumstances prescribed in regulations made under section 20, and take that person before a Magistrate's Court to be dealt with according to law.

[17/2019]

Amendment of Schedule

18A. The Minister may, by order in the *Gazette*, amend the Schedule.

[17/2019]

Rules of Court

19.—(1) The Rules Committee constituted under section 80(3) of the Supreme Court of Judicature Act 1969 may make Rules of Court to regulate and prescribe the procedure and practice to be followed in respect of civil proceedings under this Act and in the Protection from Harassment Court.

[17/2019]

(2) Without affecting subsection (1), Rules of Court may be made for the following purposes:

(*a*) to provide for expedited procedures;

(*b*) to provide for any orders made under this Act to be published in a specified manner;

(*c*) to empower the court to make any ancillary orders for the purposes of this Act;

(*d*) in relation to proceedings for an order under section 11, 12 or 13 or Division 2 of Part 3, where the name of any party to whom the order is intended to apply is unknown, for that party to be identified by an Internet location address, a website, a username or account, an electronic mail address or any other unique identifier;

[Act 23 of 2025 wef 29/06/2026]

(*e*) to prescribe the persons who may bring civil proceedings under this Act on behalf of —

(i) any victim mentioned in section 3, 4, 5, 6 or 7; or

(ii) any subject mentioned in Division 2 of Part 3;

(*f*) to provide for the costs (including disbursements) and fees of any civil proceedings under this Act, and for regulating any matter relating to the costs of such proceedings;

(*g*) to prescribe anything that this Act requires or permits to be prescribed by Rules of Court.

[17/2019]

(2A) Without affecting subsections (1) and (2), Rules of Court may be made, in relation to a Protection from Harassment Court, for the following purposes:

(*a*) to provide for any civil proceedings in that Court to be conducted in an informal manner;

(*b*) to provide for the adoption of a judge-led approach in any civil proceedings in that Court;

(*c*) to provide that that Court is not bound by the rules of evidence in the conduct of any civil proceedings, and may inform itself on any matter in such manner as it thinks fit;

(*d*) to prescribe the persons who may act for a party to any civil proceedings in that Court;

(*e*) to expressly empower that Court to do any of the following things in any civil proceedings in that Court, where that Court thinks it fit to do so in the interest of justice, safety or propriety:

(i) to order the redaction of any information (including the name of a party) contained in any document filed in those civil proceedings;

(ii) to order that those civil proceedings be heard in private;

(iii) to order any person to do any act or refrain from any conduct, so as to prevent the identification of any witness or party in those civil proceedings;

(*f*) to expressly empower that Court to decide any matter in the absence of any party to any civil proceedings in that Court, if that party fails without reasonable excuse to attend any civil proceedings in that Court, even if the interests of that party are prejudicially affected by that decision;

(*g*) to provide for the costs (including disbursements) and fees of any civil proceedings in that Court, and for any such costs or fees not to apply except in certain specified circumstances.

[17/2019]

(3) Rules of Court may, instead of providing for any matter, refer to any provision made or to be made about that matter by practice directions issued for the time being by the Registrar of the Supreme Court or the Registrar of the State Courts, as the case may be.

Family Justice Rules

19A.—(1) The Family Justice Rules Committee constituted under section 46(1) of the Family Justice Act 2014 may make Family Justice Rules to regulate and prescribe the procedure and practice to be followed in the Family Justice Courts in respect of civil proceedings under this Act that are within the jurisdiction of the Family Justice Courts.

(2) The Family Justice Rules may, instead of providing for any matter, refer to any provision made or to be made about that matter by practice directions issued for the time being by the registrar of the Family Justice Courts.

[Act 17 of 2019 wef 15/10/2024]

Regulations

20.—(1) The Minister may make regulations for carrying out the purposes of this Act, except any matter —

(*a*) for which Rules of Court may be made under section 19; or

(*b*) mentioned in subsection (2).

[17/2019]

(2) For the purposes of section 13B, the Minister charged with the responsibility for health may make regulations relating to the treatment of a person under a mandatory treatment order.

[17/2019]

Presentation to Parliament

20A. All orders made under sections 13A and 18A, Rules of Court made under section 19, Family Justice Rules made under section 19A

and regulations made under section 20 must be presented to Parliament as soon as possible after publication in the *Gazette*.

[17/2019]

Exemptions

21.—(1) The following orders must not be made in respect of any class of persons, as prescribed under subsection (2):

(*a*) a protection order made under section 12(2) that provides any thing under section 12(2B)(*b*), or an expedited protection order made under section 13(1) that so provides;

(*b*) a protection order made under section 12(2E), or an expedited protection order made under section 13(1B);

(*ba*) a protection order made under section 12(2F), or an expedited protection order made under section 13(1C);

(*bb*) a protection order made under section 12(2G), or an expedited protection order made under section 13(1D);

[Act 23 of 2025 wef 29/06/2026]

(*c*) any order made under Division 2 of Part 3.

[17/2019]

(2) The Minister may, by order in the *Gazette*, prescribe the classes of persons, and the orders in respect of each class of persons so prescribed, to which subsection (1) applies.

[17/2019]

(3) Every order made under subsection (2) must be presented to Parliament as soon as possible after publication in the *Gazette*.

THE SCHEDULE

Sections 12(2A)(*a*), 13(1A)(*a*) and 18A

SPECIFIED OFFENCES

1. Offences under section 323, 324, 325, 326, 327, 329, 330, 331, 332 or 333 of the Penal Code 1871.

[17/2019]

[S 338/2022 wef 01/05/2022]

2. Offences under section 17B(1) of the Private Security Industry Act 2007.

[S 338/2022 wef 01/05/2022]

LEGISLATIVE HISTORY

PROTECTION FROM HARASSMENT ACT 2014

This Legislative History is a service provided by the Law Revision Commission on a best-efforts basis. It is not part of the Act.

1. Act 17 of 2014 — Protection from Harassment Act 2014

Bill	:	12/2014
First Reading	:	3 March 2014
Second and Third Readings	:	13 March 2014
Commencement	:	15 November 2014

2. 2015 Revised Edition — Protection from Harassment Act (Chapter 256A)

Operation	:	31 May 2015

3. Act 27 of 2018 — Vulnerable Adults Act 2018
(Amendments made by section 41 of the above Act)

Bill	:	20/2018
First Reading	:	20 March 2018
Second and Third Readings	:	18 May 2018
Commencement	:	19 December 2018 (section 41)

4. Act 40 of 2019 — Supreme Court of Judicature (Amendment) Act 2019
(Amendments made by section 29(13) of the above Act)

Bill	:	32/2019
First Reading	:	7 October 2019
Second Reading	:	5 November 2019
Notice of Amendments	:	5 November 2019
Third Reading	:	5 November 2019
Commencement	:	1 June 2021 (section 29(13))

5. 2020 Revised Edition — Protection from Harassment Act 2014

Operation	:	31 December 2021

6. Act 25 of 2021 — Courts (Civil and Criminal Justice) Reform Act 2021
(Amendments made by Part 7 of the above Act)

Bill	:	18/2021
First Reading	:	26 July 2021
Second and Third Readings	:	14 September 2021
Commencement	:	1 April 2022

7. Act 29 of 2021 — Private Security Industry (Amendment) Act 2021

Date of First Reading	:	13 September 2021 (Bill No. 22/2021)
Date of Second and Third Readings	:	5 October 2021
Date of commencement	:	1 May 2022

8. G.N. No. S 338/2022 — Protection from Harassment Act 2014 (Amendment of Schedule) Order 2022

Date of commencement	:	1 May 2022

9. Act 31 of 2022 — Statutes (Miscellaneous Amendments) Act 2022
(Amendments made by the above Act)

Bill	:	24/2022
First Reading	:	12 September 2022
Second and Third Readings	:	3 October 2022
Commencement	:	1 November 2022

10. Act 11 of 2023 — Healthcare Services (Amendment) Act 2023
(Amendments made by the above Act)

Bill	:	6/2023
First Reading	:	6 February 2023
Second and Third Readings	:	6 March 2023
Commencement	:	1 May 2023

11. Act 17 of 2019 — Protection from Harassment (Amendment) Act 2019

Bill	:	11/2019
First Reading	:	1 April 2019
Second and Third Readings	:	7 May 2019

Commencement	:	1 January 2020 (except sections 2, 3(1)(*e*) and (2), 13, 14, 15, 16, 17, 18, 19, 20, 22, 23, 24, 25, 26, 27, 28, 29, 30 and 31) 1 April 2020 (sections 3(1)(*e*) and (2)(*a*) to (*d*) and (*g*), 14, 20(1) to (7), 24(*b*) to (*g*), 26, 27 and 28(1)) 1 June 2021 (sections 2, 3(2)(*e*) and (*f*), 13, 15 to 19, 20(8), 22, 23, 24(*a*) and (*h*), 28(2), 29 and 30) 15 October 2024 (section 25)

12. Act 23 of 2025 — Online Safety (Relief and Accountability) Act 2025

Bill	:	18/2025
First Reading	:	15 October 2025
Second and Third Readings	:	5 November 2025
Commencement	:	29 June 2026 (section 109)

13. Act 21 of 2025 — Criminal Law (Miscellaneous Amendments) Act 2025

Bill	:	15/2025
First Reading	:	14 October 2025
Second and Third Readings	:	4 November 2025
Commencement	:	17 August 2026

Abbreviations

(updated on 29 August 2022)

G.N.	Gazette Notification
G.N. Sp.	Gazette Notification (Special Supplement)
L.A.	Legislative Assembly
L.N.	Legal Notification (Federal/Malaysian)
M.	Malaya/Malaysia (including Federated Malay States, Malayan Union, Federation of Malaya and Federation of Malaysia)
Parl.	Parliament
S	Subsidiary Legislation
S.I.	Statutory Instrument (United Kingdom)
S (N.S.)	Subsidiary Legislation (New Series)
S.S.G.G.	Straits Settlements Government Gazette
S.S.G.G. (E)	Straits Settlements Government Gazette (Extraordinary)